

Under the UK Copyright, Designs and Patents Act 1988, which of the following elements of a newly developed computer program is explicitly protected by copyright law?

Option A

The underlying mathematical concepts and algorithms driving the application.

Option B

The overarching business procedures and methods of operation the software facilitates.

Option C

The functional elements and mechanical behaviour of the user interface.

Option D

The specific expression of the source code, categorised legally as a literary work.

Option E

The general idea and conceptual framework of the software architecture.

Option A
Idea protection

Option B
Functional concept

Option C
Method of operation

Option D
Expression of an idea

Option E
Procedure

Legal Insight: The Idea-Expression Dichotomy

Correct Answer: D

Explanation: Copyright law strictly protects the particular expression of an idea, not the idea itself. In the UK, computer programs are explicitly protected as literary works.

The Exclusions

- Procedures
- Methods of operation
- Functional elements
- Mathematical concepts

These elements are explicitly excluded from copyright protection, though they may occasionally be covered by other intellectual property branches, such as patents.

According to the rules established for signatories of the Berne Convention, what is the standard duration of copyright protection for a published software work in the UK?

Option A: 56 years from the date of first publication.

Option B: The life of the author plus 50 years.

Option C: 95 years for corporate works, or 120 years from the year of creation.

Option D: The life of the author plus 70 years, or 70 years from the date of first publication.

Option E: Perpetual protection until expressly waived into the public domain.

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Legal Insight: Standard Copyright Duration

Correct Answer: D

Explanation: Because the UK is a signatory to the Berne Convention, copyright is inherently established upon creation with a strictly defined lifespan.

Individual Authors	Published Works
Protection lasts for the life of the author plus 70 years from the death of the author.	Protection lasts for 70 years from the date of first publication.

Note: US-specific corporate extensions like the Sonny Bono Act are distinct from standard UK base rules.

An independent software contractor writes a critical backend module for a startup. The contractor did not sign any written agreement stating the code is a “work made for hire.” Under standard legal principles, who holds the initial copyright?

Option A: The startup, because an implied employment relationship exists when code is written for a business.

Option B: The independent contractor, as the creator of the work initially owns the rights absent a specific agreement.

Option C: Both parties hold joint copyright under the principle of equitable remuneration.

Option D: The code automatically enters the public domain until a formal licence is attached.

Option E: The startup owns the copyright, but the contractor retains a perpetual, royalty-free licence to use it.

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Legal Insight: The Exceptions to Creator-Ownership

Correct Answer: B

Explanation: As a general rule, the creator of the work initially owns the copyright. The startup does not own the code simply by commissioning it.

Employees	If created by an employee in the course of employment, the employer owns the copyright (as dictated by the contract).
Independent Contractors	If created by a contractor, the commissioning organisation only owns the copyright IF the contractor signs a written agreement explicitly stating it is a 'work made for hire' or sells the entire copyright.

Under the UK legal framework for ‘Fair Dealing’, which of the following actions involving a copyrighted computer program is explicitly protected as a relaxation of the law?

A. Reverse-engineering the source code to create a competing commercial product.

B. Producing a back-up copy of a computer program for personal use.

C. Distributing modified proprietary binaries strictly for non-profit educational lending.

D. Unintentional, material inclusion of restrictive code within a commercial release.

E. Broadcasting the source code on a news platform for critical review.

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Legal Insight: Fair Use & Dealing Constraints

Correct Answer: B

Explanation: UK law provides specific relaxations (Fair Dealing) for actions like private study, non-material incidental inclusion, and critically for software: **producing a back-up copy of a computer program for personal use.**

THE CRUCIAL CAVEAT: This use is strictly conditional. It must not affect market opportunities or cause the original creator to lose out financially. Options involving redistribution or commercial competition inherently violate this condition.

While standard UK copyright has a strict expiration, which of the following holds a unique, perpetual crown copyright due to the Copyright Act of 1775?

A. Foundational algorithms developed by Cambridge University.

B. The original theatrical scripts of William Shakespeare.

C. The printed editions of the Authorized King James Version of the Bible.

D. Documents produced by the British Monarchy prior to 1922.

E. The first iterations of the GNU Public License.

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Legal Insight: Perpetual Copyright

Correct Answer: C

Explanation: While most intellectual property law mandates strict expiration timelines, statutory anomalies exist within historical legislation.

Key Facts: The Copyright Act of 1775 established a perpetual copyright for specific universities. Consequently, a perpetual crown copyright is held specifically for the printed editions of the Authorized King James Version of the Bible in the UK. This strictly its printing solely to the Royal printer and the Universities of Oxford and Cambridge.

Case File 06: The Public Domain

In strict legal terms, how does a software work enter the 'Public Domain'?

A: When it is uploaded to a public repository like GitHub without an explicit licence attached.

B: When the intellectual property rights have expired, been forfeited, or expressly waived.

C: When it is released under the GPLv3 copyleft licence.

D: When it is designated as 'freeware' by a commercial entity.

E: When it is used primarily for non-profit research and educational purposes.

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Legal Insight: Defining the Public Domain

Correct Answer: B

Explanation: The public domain consists of creative work to which no exclusive intellectual property rights apply. It is not a licence, but the complete absence of copyright.

Pathways to the Public Domain:

- Rights have naturally expired over time.
- Rights have been legally forfeited.
- Rights have been expressly waived by the creator.
- Rights are legally inapplicable to the specific type of work.

Case File 07: The Philosophy of FOSS

The Free Software Foundation (FSF) emphasizes that 'free software' fundamentally refers to which of the following concepts?

A: The total elimination of all monetary costs for software distribution and enterprise support.

B: The user's civil liberties to use, study, copy, and modify the software without restriction.

C: The complete waiver of underlying copyright and patent claims by the original author.

D: The right to host software on public servers without paying bandwidth or infrastructure fees.

E: The legal requirement to release all software into the public domain immediately upon creation.

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Legal Insight: Free as in Speech

Correct Answer: B

Explanation: Free and open-source software (FOSS) is defined by civil liberties, not monetary cost.

The term free software does not refer to the monetary cost of the software at all, but rather whether the license maintains the software user's civil liberties ('free' as in 'free speech', not as in 'free beer').

This stands in direct contrast to proprietary software, which utilizes restrictive copyright licensing and typically hides the source code.

Case File 08: The Four Essential Freedoms

According to the Free Software Foundation's Four Essential Freedoms, what is the absolute technical and legal precondition required to exercise Freedom 1 (study and change) and Freedom 3 (distribute modified versions)?

Option A: The payment of a nominal, one-time distribution fee to the original author.

Option B: The explicit legal waiver of all underlying intellectual property rights.

Option C: Full, unrestricted access to the underlying source code.

Option D: The removal of any trademarked logos or proprietary branding.

Option E: A written, notarised contract explicitly permitting reverse engineering.

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Legal Insight: The Preconditions of Freedom

Correct Answer: C

Explanation: Without source code, the legal right to modify software is technically useless.

- 0** Run the program for any purpose.
- 1** Study and change how the program works. (Precondition: Source Code Access)
- 2** Redistribute copies to help others.
- 3** Distribute modified versions to benefit the community. (Precondition: Source Code Access)

How does a 'Copyleft' software licence (such as the GPL) legally differentiate itself from permissive free software licences?

Option A: It dedicates the work entirely to the public domain, waiving all copyright.

Option B: It is considered reciprocal, requiring that derivative works preserve the same rights and make source code available.

Option C: It allows proprietary developers to integrate the code into closed-source products without disclosure.

Option D: It inherently restricts the use of the software to non-commercial and educational entities.

Option E: It retains copyright restrictions but automatically waives all patent litigation rights.

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Legal Insight: Reciprocal vs. Permissive

Correct Answer: B

Explanation: Copyleft actively leverages copyright law to enforce openness. It grants the right to distribute and modify, but strictly requires that the exact same rights be preserved in any derivative works.

Copyleft (e.g., GPL)	Permissive (e.g., MIT, BSD)
Restricts proprietary redistribution. Demands source code disclosure for derivative works.	Generally permissive relative to the author's goals. Allows integration into proprietary, closed-source derivative works.

Case File 10: High-Profile Forks & Philosophy

The Linux Kernel is one of the most impactful software projects globally. Why has the project explicitly refused to update its licence from GPLv2 to the newer GPLv3?

Option A: GPLv3 removed the requirement to disclose source code, threatening the open-source nature of Linux.

Option B: Linus Torvalds maintained a strict difference in philosophy regarding the increased restrictions and scope of GPLv3.

Option C: GPLv3 explicitly forbids commercial enterprise usage, which would destroy Linux's server market share.

Option D: The transition to GPLv3 would require stripping all trademarked branding from the operating system.

Option E: GPLv2 is a permissive licence, while GPLv3 introduced Copyleft constraints for the first time.

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Legal Insight: Licence Versioning Impacts

Correct Answer: B

Explanation: The Linux project has remained steadfastly on GPLv2 due to deep philosophical differences.

Strategic Implication: Licence versioning is not merely a technical update; it carries massive ideological and operational weight. The author of Linux (Linus Torvalds) fundamentally disagreed with the expanded restrictions introduced in GPLv3 (such as aggressive anti-tivoization clauses), viewing them as overreach beyond the original intent of simply keeping the software free.

Case File 11: Unlicensed Code Adoption

A software architect discovers a highly efficient, publicly available repository on GitHub that lacks any visible software licence. What is the legal status of this code regarding adoption into a commercial project?

Option A: Because it is publicly hosted without a licence, it legally defaults to the public domain.

Option B: It can be legally adopted provided the original author is credited in the commercial release.

Option C: It falls under an implied MIT licence due to the open nature of the hosting platform.

Option D: The author retains full exclusive copyright; it cannot be legally adopted, modified, or redistributed without permission.

Option E: It can be used freely under the 'Fair Dealing' provision for commercial research and development.